

Cirque Corporation

Non-Disclosure Agreement (NDA) Policy

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1. Introduction

Cirque Corporation depends on protecting confidential information and trade secrets. Non-disclosure agreements (NDAs) are a critical legal tool for this protection.

2. Purpose

This policy establishes requirements for when NDAs must be used, what they must include, and how they are managed to protect Cirque confidential information.

3. Scope

This policy applies to all employees, contractors, vendors, partners, customers, and other parties who may have access to Cirque confidential information.

4. When NDAs are Required

NDAs must be executed before sharing confidential information with:

- New employees and contractors
- Vendors and service providers with system access
- Business partners and potential partners
- Customers receiving confidential product information
- Any external party conducting audit or assessment
- Consultants and temporary workers

5. employee NDAs

All employees and contractors must sign an NDA:

- Before or on first day of employment
- As part of onboarding process
- Covering duration of employment and period after termination
- Including provisions for return of confidential materials upon termination

6. Vendor and Partner NDAs

Third parties requiring access to Cirque systems or confidential data must execute NDAs including:

- Definition of confidential information
- Limitations on use and disclosure
- Security requirements for protecting information
- Rights to audit compliance
- Duration of confidentiality obligations
- Liability for breach
- Jurisdiction and dispute resolution

7. Mutual NDAs

For relationships involving exchange of confidential information, mutual NDAs shall be used where both parties have confidentiality obligations.

8. NDA Requirements

All NDAs must include:

- Clear definition of what constitutes confidential information
- Permitted uses of confidential information
- Prohibited disclosures and uses
- Security requirements
- Term and survival of obligations
- Consequences of breach
- Return or destruction of information upon termination

9. NDA Approval and Execution

All NDAs must be:

- Reviewed and approved by Legal counsel
- Signed by authorized representative
- Maintained in contract repository
- Tracked for renewal or expiration

10. Monitoring and Enforcement

Compliance with NDAs shall be monitored. Breaches must be:

- Investigated promptly
- Reported to Legal and management
- Remediated with appropriate action
- Enforced through legal action if necessary